

GDPR compliance report

Generated: 2026-05-01 12:45:22

Halted (P1): False

Overall score (P2): 30%

P2 score: 0.3

Findings: 42 | **HIL queue:** 17

Documents

- ../data/post_gdpr/data/GoPPC-150/88.xml

Definitions preview (Art.4)

For the purposes of this Regulation:

(1) 'personal data' means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;

(2) 'processing' means any operation or set of operations which is performed on personal da...

Scope (Art. 2 / 3)

```
{
  "applies": "yes",
  "reasons": [
    "The company operates globally and processes personal data of users.",
    "The company states that personal information may be transferred to and stored in the United States.",
    "The company collects information such as name, email, and country of residence."
  ],
  "evidence": [
    "Patreon is a global company.",
    "By using our platform, you agree that your personal information that you provide directly to us, or that we collect through your use of the platform, may be transferred to and stored in the United States and handled as described in this Policy.",
    "First and Last Name",
    "Email Address",
    "State and Country of Residence"
  ],
  "hil_required": false
}
```

Summary

```
{
  "overall_score_pct": 30,
  "p2_score": 0.3,
  "p2_findings_total": 25,
  "p3_findings_total": 15,
  "p4_triggered_total": 2,
  "p4_articles_not_triggered": 4,
  "findings_total": 42,
  "hil_queue_total": 17
}
```

Findings

Art.	Title	P	Status / flags	Risk	Notes
5	Principles relating to processing	p2	partial	medium	The policy outlines various types of data collected and stored
6	Lawfulness of processing	p2	fail	critical	The policy chunks describe various types of personal data collected
7	Conditions for consent	p2	partial	medium	The policy outlines mechanisms for opting out of marketing communications
8	Child's consent	p3	present=False, impl_unverified=False	medium	The policy does not mention age verification or parental consent
9	Special category data	p2	fail	high	The policy collects sensitive data categories (ethnicity, race, etc.)
10	Criminal convictions data	p3	present=False, impl_unverified=False	medium	The provided text consists only of definitions relevant to GDPR
11	Processing without identification	p2	partial	low	The policy mentions definitions relevant to Article 11 but lacks details
12	Transparency & modalities	p2	fail	high	While the policy mentions providing access, transport, and storage, it lacks details
13	Info collected from data subject	p2	partial	medium	The provided text describes the types of information collected from users
14	Info not obtained from data subject	p2	partial	medium	The policy addresses Article 14 by acknowledging data collected from other sources
15	Right of access	p2	partial	high	While the policy lists various categories of personal data collected, it lacks details
16	Right to rectification	p2	partial	low	The policy describes the ability to access and update information
17	Right to erasure	p2	partial	medium	The policy describes how a user can initiate account deletion
18	Right to restriction	p2	pass	low	The policy explicitly states the 'right to restrict or oppose the processing of personal data'
19	Notification on rectification/erasure	p3	present=False, impl_unverified=False	medium	The provided text does not contain information about how to exercise these rights
20	Right to data portability	p2	partial	medium	The policy allows users to export their data, which is a step towards portability
21	Right to object	p2	partial	medium	The policy indicates that users can adjust preferences via account settings
22	Automated decision-making	p2	fail	critical	Article 22 of GDPR is critical for companies utilizing automated decision-making
24	Responsibility of the controller	p2	partial	medium	The policy states that third parties are contractually obligated to follow the policy
25	Privacy by design and default	p3	present=False, impl_unverified=False	medium	The provided text describes the types of information collected from users
26	Joint controllers	p3	present=False, impl_unverified=False	medium	The policy does not contain any mention of joint controllers
27	Representatives (non-EU)	p3	present=False, impl_unverified=False	medium	The provided text contains definitions from Article 4 of the GDPR
28	Processor / DPA	p2	partial	medium	The policy indicates that a DPA exists for creators and their service providers
29	Processing under authority	p2	fail	high	The provided policy chunks define terms relevant to processing personal data
30	Records of processing (ROPA)	p2	partial	medium	While the policy details various types of data collected and stored, it lacks details
32	Security of processing	p3	present=False, impl_unverified=False	medium	The provided text outlines data collection practices and user consent
33	Breach notification to SA	p3	present=False, impl_unverified=False	medium	The provided text does not contain any information about breach notification
34	Breach communication to data subject	p3	present=False, impl_unverified=False	medium	The provided text does not contain information about how to communicate breaches
35	DPIA	p3	present=False, impl_unverified=False	medium	The provided text details the types of personal data collected from users
37	DPO designation	p2	fail	medium	The provided policy text does not contain information regarding a Data Protection Officer
38	DPO position	p3	present=False, impl_unverified=False	medium	The policy text provided discusses data sharing, third-party processing, etc.
39	DPO tasks	p2	fail	high	No information found to assess DPO tasks as per GDPR Article 39
40	Codes of conduct	p3	present=False, impl_unverified=False	medium	The provided text does not mention codes of conduct or approved codes of conduct
42	Certification	p3	present=False, impl_unverified=False	medium	The provided text does not mention GDPR Article 42 or any certification mechanisms
44	General principle for transfers	p2	fail	critical	Article 44 requires that transfers of personal data to third countries are lawful
45	Adequacy decision transfers	p2	fail	critical	Article 45 of GDPR specifically addresses international data transfers
46	Transfers with safeguards	p3	present=False, impl_unverified=False	medium	The policy mentions that personal information may be transferred to third parties
47	Binding corporate rules	p3	present=False, impl_unverified=False	medium	The provided text mentions data sharing with third parties for marketing purposes
77	Right to lodge a complaint	p2	fail	high	The policy mentions data subject rights such as accessing, deleting, and porting data
85	Freedom of expression	p4	triggered	—	

87	National identification number	p4	triggered	—	
88	Employment context	p2	fail	high	The provided policy chunks do not contain information rele

Human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention age verification or parental consent mechanisms for
children's data, which are the core components of Article 8 of the GDPR."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text consists only of definitions relevant to GDPR, specifically
Article 4. It does not contain any substantive policy content related to Article 10, which
covers criminal convictions and offenses."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain information about downstream notification to
recipients upon rectification or erasure of personal data, which is the core of Article 19."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text describes the types of information collected, how it is used,
and sharing practices, but does not explicitly mention or address the principles of 'privacy by
design' or 'privacy by default' as required by Article 25 of the GDPR."
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not contain any mention of joint controllership or agreements
between multiple entities determining the purposes and means of data processing. It mentions
sharing data with third-party apps and partners, but it does not specify their role as joint
controllers."
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from Article 4 of the GDPR but does not
address the specific requirements of Article 27 concerning representatives for non-EU entities
or the need for a written mandate."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": false,
    "implementation_unverified": false,
```

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    "evidence": [],
    "notes": "The provided text outlines data collection practices and usage but does not
contain information regarding encryption, access controls, incident response, or security
testing, which are key components of GDPR Article 32."
  },
  {
    "kind": "p3_verify",
    "article_number": 33,
    "article_title": "Breach notification to SA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain any information about breach notification to a
supervisory authority or the specifics of a 72-hour notification policy, nor does it mention a
DPO contact. The operational breach log is also not addressed."
  },
  {
    "kind": "p3_verify",
    "article_number": 34,
    "article_title": "Breach communication to data subject",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain information about procedures for communicating
data breaches to data subjects. It focuses on data collection, sharing, marketing, and account
management."
  },
  {
    "kind": "p3_verify",
    "article_number": 35,
    "article_title": "DPIA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text details the types of personal data collected and how it is used,
but it does not mention or address Data Protection Impact Assessments (DPIAs) as required by
Article 35 of the GDPR. Therefore, a policy on DPIAs is not present in the text."
  },
  {
    "kind": "p3_verify",
    "article_number": 38,
    "article_title": "DPO position",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy text provided discusses data sharing, third-party apps, public
accessibility of information, user preferences, marketing activities, and account deletion. It
does not contain any information related to the Data Protection Officer (DPO) position, their
appointment, or their independence, which are the core topics of GDPR Article 38."
  },
  {
    "kind": "p3_verify",
    "article_number": 40,
    "article_title": "Codes of conduct",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not mention codes of conduct or adherence to any such
codes. The focus is on data sharing, user preferences, marketing opt-outs, and account
management. There is no mention of bodies that approve or oversee codes of conduct as required
by Article 40."
  },
  {
    "kind": "p3_verify",
    "article_number": 42,
    "article_title": "Certification",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not mention GDPR Article 42 or any form of data
certification processes. It focuses on data sharing, user preferences, marketing, and account
management."
  },
  {
    "kind": "p3_verify",
    "article_number": 46,
    "article_title": "Transfers with safeguards",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy mentions that personal information may be transferred and stored in
the United States, but does not mention safeguards for international transfers such as Standard

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Contractual Clauses (SCCs) or Binding Corporate Rules (BCRs). It also does not address the execution or updating of such contracts."

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},
{
  "kind": "p3_verify",
  "article_number": 47,
  "article_title": "Binding corporate rules",
  "policy_present": false,
  "implementation_unverified": false,
  "evidence": [],
  "notes": "The provided text mentions data sharing with third parties and contractual obligations for safeguarding data, but it does not explicitly address or mention Binding Corporate Rules (BCRs) as required by Article 47 of the GDPR."
},
{
  "kind": "p4_conditional",
  "article_number": 85,
  "article_title": "Freedom of expression",
  "what_to_review": [
    "Verify if the user is claiming a journalism, academic, or artistic derogation.",
    "Confirm the legitimacy of the claimed derogation.",
    "Assess the necessity and proportionality of data processing in relation to the claimed derogation."
  ],
  "evidence": "Auto-detect journalism/academic/artistic derogation claims. Always route to human – legitimacy cannot be auto-verified.",
  "notes": null
},
{
  "kind": "p4_conditional",
  "article_number": 87,
  "article_title": "National identification number",
  "what_to_review": [
    "Confirm if NINs/national IDs are collected.",
    "Verify applicable national law.",
    "Assess safeguards for handling NINs/national IDs."
  ],
  "evidence": "Social Security Number or Employer Identification Number",
  "notes": null
}
]
```